

Ruling

1. The Court finds that the settlement is fair, reasonable, and adequate, including the attorney's fees. The motion is **granted**.
2. Counsel are directed to prepare an order reflecting this tentative ruling and the other findings in the previously submitted proposed order. The Court will sign a Proposed Order lodge with the Court on May 4, 2026 provided the terms are consistent with this ruling, and will set a compliance hearing date.
3. The judgment should identify the individual class member who is excluded, so that if they ever bring a claim, it can easily be determined that they are not bound by the settlement. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented.
4. Plaintiffs' counsel are to submit a compliance statement one week before the compliance hearing date. 5% of the attorney's fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.
5. The compliance hearing will be held in Department 16 and will be set by the Clerk of the Court.
6. Provided Counsel prepares a compliance statement that conforms to the foregoing, the Court may vacate the compliance hearing via minute order.
7. No appearance is required at the hearing on May 20, 2026.

8. 9:00 AM CASE NUMBER: C24-00866

CASE NAME: DEVLIN BRASWELL VS. ALLUVIUM, INC.

***HEARING ON MOTION IN RE: APPROVING AND SETTLING THE RECEIVER'S FINAL REPORT AND ACCOUNTING**

FILED BY:

TENTATIVE RULING:

Summary

Receive Kevin Singer's Motion to Approve and Settle the Receiver's Final Report filed on December 18, 2025 is **granted** as set forth herein.

Background

This Motion was continued from April 22, 2026 after the Court received and reviewed (1) Objections from Intervenor Patti O'Brien to the Receiver's Final Accounting Report, which is supported by the Declaration of Patricia Coleman filed on April 8, 2026; and (2) Opposition filed by Creditor and Lien Claimant Global Assets Lien and Foreclosures, LLC filed on April 9, 2026. The Court ordered no further briefings, but requested the Receiver to file replies to both filings. The Court reviewed the replies prepared by the Receiver. The Court's findings are addressed in the ruling below.

The Court received an untimely opposition from Non-Party AX9 Security, to which the Receiver lodged an objection. The objection is **sustained**. Non-Party AX9's objection is untimely. Moreover, even if untimely, AX9 is a former vendor who may have been owed a substantial balance from the pre-receivership period. No funds remain to pay AX9, whose claim is junior to the Receiver's fees and

expenses, and to the two Receiver's Certificate Holders. The Court does not consider AX9's opposition.

After considering the replies, the original Motion, the opposition papers and objections, the Court finds good cause to make the following rulings and orders.

Ruling

- A. The Court finds that the objections made by Intervenor Patti O'Brien are an attempt to relitigate the propriety of the Receivership appointment, and as such, the objections are **overruled**.
- B. The Court finds that the Opposition by Creditor and Lien Claimant Global Asset Lien and Foreclosure LLC ("Global") are not supported by compelling legal authority for the proposition that its claim was not precluded and that it is entitled to an evidentiary hearing on the amount and priority of administration expenses. The Court finds Global agreed to lend funds in a subordinate position to the Receivership Estate's costs of administration. The record before the Court demonstrates that Global's certificate is junior to the Receiver's fees and expenses. Accordingly, any objections raised by Global are overruled and its request for relief are **denied**.
- C. The Receiver's Motion is **granted**. The Court will execute the proposed order lodged on December 18, 2025.

9. 9:00 AM CASE NUMBER: C24-01900
CASE NAME: NORRELL MACK VS. G LOGISTICS LLC
***HEARING ON MOTION IN RE: PRELIMINARY APPROVAL**
FILED BY: MACK, NORRELL
TENTATIVE RULING:

Summary

Plaintiff Norrell Mack individually and on behalf of those similarly situated ("Plaintiff") moves for preliminary approval of their proposed class action settlement with Defendant G Logistics LLC ("Defendant") The motion is **granted**. No appearance is required at the hearing on May 20, 2026.

Background and Settlement Terms

The original complaint was filed on July 19, 2024 and amended on August 5, 2025, raising class action claims on behalf of non-exempt employees, alleging that defendant violated the Labor Code by failing to pay minimum wages, provide meal and rest breaks, provide accurate wage statements, expense reimbursement, among others, to delivery drivers working for Defendant. The Parties entered into a settlement agreement and now moves the Court to approve the settlement agreement and to enter the following orders:

1. preliminarily certifying the class for purposes of settlement only.
2. Preliminarily appointing Plaintiff as Class Representative for purposes of settlement only; .
3. Preliminarily appointing Kevin Lipeles, Esq., Thomas Schelly, Esq., and Jasmine Badawi, Esq. of Lipeles Law Group, APC, as Class Counsel for purposes of settlement only;
4. Preliminarily approving the settlement as fair, adequate, and reasonable, based upon the terms set forth in the parties' Class Action and PAGA Settlement Agreement and Class Notice